

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NANCY PRIOR, *Complainant*

v.

AMOOV GROUP; FREIGHTLEAD LLC; AND AIR 7 SEAS
TRANSPORT LOGISTICS, INC., *Respondents*.

DOCKET NO. 26-02

Served: July 1, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

**ORDER DENYING MOTIONS FOR ENTRY OF DEFAULT AGAINST RESPONDENTS AIR 7 SEAS
TRANSPORT LOGISTICS, INC. AND FREIGHTLEAD LLC**

On February 23, 2026, Complainant Nancy Prior filed motions for entry of default as to Respondents Air 7 Seas Transport Logistics, Inc. [Dkt. 11] and Freightlead LLC [Dkt. 13]. Prior to filing the motions for default, on February 6, 2026, Complainant filed an amended complaint combined with a status report. Dkt. 7. Complainant did not file a motion seeking leave to file the amended complaint as required by Commission Rule 502. 46 C.F.R. § 502.66(a). Respondents' counsel subsequently entered appearances, after which Freightlead filed a motion to dismiss [Dkt. 14] and Air 7 Seas Transport filed an answer [Dkt. 15]. The responses to the complaint were filed on March 3, 2026, 25 days after the filing of the amended complaint.

Answers to complaints are due within 25 days after service of the complaint. 46 C.F.R. § 506.62(b)(1). The Commission Rule on amendments and supplements to pleadings does not provide for a specific time to respond to an amended complaint, unlike the Federal Rules of Civil Procedure. Compare 46 C.F.R. § 502.66(b) with FRCP 15(a)(3) (“[A]ny required response to an amended pleading must be made within the time remaining to respond to the original pleading or within 14 days after service of the amended pleading, whichever is later.”). But the Commission Rule, unlike the Federal Rule, does not provide for amendment as a matter of course – a complainant must seek leave to amend. 46 C.F.R. § 502.66(a). Had Complainant sought, and been granted, leave to amend, I would have set a deadline for Respondents' answers.

In the absence of a deadline set by rule or an order from the presiding officer, Respondents' filing of their answers to the amended complaint within 25 days of service cannot be said to constitute a default, as argued by Complainant. In her motion for entry of default against Freightlead, Complainant also argues that Freightlead failed to file an answer “within the timeframe agreed upon by the parties” of February 23, 2026. Dkt. 13. Any purported agreement between Complainant and Respondents is immaterial because agreements between the parties are

not sufficient to modify filing deadlines – any request to modify a filing deadline must be made by motion to the presiding officer. 46 C.F.R. § 502.102.

Accordingly, Complainant's motions for entry of default against Air 7 Seas Transport and Freightlead are **DENIED**.

ALEX
CHINTELLA



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Alex M. Chintella
Administrative Law Judge